

CV-23-006532 THOMPSON, SHELDON L vs JAI JALARAM INVESTMENT LLC – Motion to Enforce Settlement Agreement – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The Court agrees with Defendants that the parties settled this matter at the December 15, 2025 mandatory settlement conference. The agreement was then recited in open court. However, a short few weeks after the agreement was reached, the parties began disputing some of the settlement's major terms, including the method by which the \$400,000 payment to Plaintiffs would be calculated and distributed. Plaintiffs contend that the settlement required a \$400,000 payment from Defendants' one-half share of the sale proceeds, whereas Defendants initially maintained that the \$400,000 payment was to be made "off the top" of the net sale proceeds before division between the parties. There was no court reporter present at the December 15, 2025 hearing. Thus, there is no official record of the proceedings. At a prior hearing, the Court found that the issues that were contested had been worked out and that my recollection was that Plaintiff was correct on what the agreement was, but was not at all confident in that recollection. Defendants' later willingness to accept Plaintiffs' interpretation of the disputed method of calculating and distributing the \$400,000 is irrelevant to this motion. Plaintiff aptly notes that there were time expectations to compliance, which Defendant breached. Further, the Court's prior finding – that the precise terms of the settlement are not proven – is still the Court's finding. Defendants have also not put the property up for sale. The September 22, 2026 trial date and all related pretrial dates shall remain in effect.

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